

25STCV02161 25STCV02161

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV02161 Hearing Date: August 5, 2026 Dept: 735

Plaintiff's Motion to Compel Further

Responses to Special Interrogatories from Defendant

BACKGROUND

On January 27, 2025, Plaintiff Nussbaum APC filed a complaint against Defendant Brendan Bakir, asserting causes of action for (1) breach of contract; (2) account stated; (3) services rendered; and (4) quantum meruit. Plaintiff alleges Defendant failed to pay attorney's fees incurred for representation. Defendant filed a cross-complaint against Plaintiff on May 18, 2026.

DISCUSSION

Plaintiff moves to compel further responses to Special Interrogatories, set one, from Defendant. Plaintiff served the subject discovery on March 12, 2026. Defendant provided responses in the form of objections on May 6, 2026.

Interrogatory

Nos. 1 through 18 concern Defendant's contentions regarding the retainer agreement, whether Plaintiff performed, and any claimed breach. Interrogatory Nos. 19 through 25 concern legal services and communications relating to the Bae and PCH action, as well as Plaintiff's representation of Defendant. Interrogatory Nos. 26 through 41 concern payments, invoice objections, unpaid invoices, and claimed offsets. Interrogatory Nos. 42 through 50 seek the witnesses, documents, facts, and contentions supporting Defendant's defenses and his challenges to Plaintiff's invoices, charges, rates, costs, and damages.

Defendant objected to each interrogatory on the grounds that they are vague, incomplete, unduly burdensome and seek confidential and privileged information.

In

opposition, Defendant argues that Plaintiff failed to properly meet and confer. Defendant represents that Plaintiff did not email the meet and confer correspondence and other documents relating to this motion to Defendant's staff as requested and included the documents in hyperlinks that expired after 5 days. Defendant also requests the Court deny sanctions because Plaintiff is a law firm representing itself and cannot recover attorney's fees as sanctions.

The

Court will grant the motion as the interrogatories seek relevant and discoverable information. The Court declines to award sanctions as law firms representing themselves may not recover attorney's fees as sanctions. Plaintiff argues that it is still entitled to fees as a corporation being represented by in-house counsel under *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1092–1094. The case cited by Plaintiff in support of this argument, however, does not involve a law firm and Plaintiff does not present evidence showing the counsel working on this action are special "in-house" counsel with an agency relationship to represent the corporate law firm's interests.

CONCLUSION

The Court grants Plaintiff's motion to compel further responses to special interrogatories from Defendant. The Court denies Plaintiff's request for sanctions.

Defendant is ordered to provide further responses to the subject discovery within 30 days of notice of ruling.

Plaintiff to give notice.